

ATTORNEY OR PARTY WITHOUT ATTORNEY NAME: Martin N. Lettunich, Attorney at Law, SBN 50995 FIRM NAME: STREET ADDRESS: 1060 Lincoln Ave, Suite 20-1022 CITY: San Jose STATE: CA ZIP CODE: 95125 TELEPHONE NO.: (408) 260-2253 FAX NO.: E-MAIL ADDRESS: info@blueprintevictions.com ATTORNEY FOR (name): Plaintiff	FOR COURT USE ONLY FILED JUN 28 2024 Clerk of the Court Superior Court of CA County of Santa Clara BY <u>J. NGUYEN</u> DEPUTY
SUPERIOR COURT OF CALIFORNIA, COUNTY OF Santa Clara STREET ADDRESS: 191 N. First Street MAILING ADDRESS: CITY AND ZIP CODE: San Jose, CA 95113 BRANCH NAME: Civil Division, Downtown Facility	
PLAINTIFF: James Devlin DEFENDANT: Adrian Ramirez	
JUDGMENT—UNLAWFUL DETAINER ☐ By Clerk ☒ By Court ☐ By Default ☐ Possession Only ☒ After Court Trial ☒ Defendant Did Not Appear at Trial	CASE NUMBER: 24CV430916

JUDGMENT

1. ☐ BY DEFAULT

- a. Defendant was properly served with a copy of the summons and complaint.
- b. Defendant failed to answer the complaint or appear and defend the action within the time allowed by law.
- c. Defendant's default was entered by the ^{court} clerk upon plaintiff's application.
- d. ☐ Clerk's Judgment (Code Civ. Proc., § 1169). For possession only of the premises described on page 2 (item 4).
- e. ☒ Court Judgment (Code Civ. Proc., § 585(b)). The court considered
- (1) ☐ plaintiff's testimony and other evidence.
- (2) ☐ plaintiff's or others' written declaration and evidence (Code Civ. Proc., § 585(d)).

2. ☒ AFTER COURT TRIAL. The jury was waived. The court considered the evidence.

- a. The case was tried on (date and time): **June 28, 2024 8:45 AM**
 before (name of judicial officer): **Johann Thien Van Dat**
- b. Appearances by
- ☒ plaintiff (name each):
Cassandra Quintero
Property Manager

☒ plaintiff's attorney (name each):
(1) Martin Lettunich
(2)

☐ Continued on Attachment 2b (form MC-025).

☐ defendant (name each):

☐ defendant's attorney (name each):

(1)

(2)

☒ Continued on Attachment 2b (form MC-025).

c. ☒ Defendant did not appear at trial. Defendant was properly served with notice of trial.

d. ☐ A statement of decision (Code Civ. Proc., § 632) ☒ was not ☐ was requested.

PLAINTIFF: DEFENDANT:	Devlin v. Ramirez	CASE NUMBER: 24CV430916
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JUDGMENT IS ENTERED AS FOLLOWS BY: ☒ THE COURT ☐ THE CLERK

3. Parties. Judgment is

- a.
- ☒
- for plaintiff (name each):

James Devlin

and against defendant (name each):

Adrian Ramirez

☐ Continued on Attachment 3a (form MC-025).

- b.
- ☐
- for defendant (name each):

4. The party entitled to possession of the premises located at (street address, apartment, city, and county):

936 Del Mar Ave, Apt 3

San Jose, CA 95128

COUNTY OF Santa Clara

is

- ☒ plaintiff named in item 3a ☐ defendant named in item 3b ☐ defendant listed on attached form UD-110P in item 8b1 (Code Civ. Proc. § 1174.27).

5. ☒ Judgment applies to all occupants of the premises including tenants, subtenants if any, and named claimants if any (Code Civ. Proc., §§ 715.010, 1169, and 1174.3).

6. Amount and terms of judgment

- a.
- ☒
- Defendant named in item 3a above must pay plaintiff on the complaint

- b.
- ☐
- Plaintiff is to receive nothing from defendant named in item 3b.

☐ Defendant named in item 3b is to recover costs: \$☐ and attorney fees: \$

(1) ☒ Past-due rent	\$ 3140.00
(2) ☒ Holdover damages	\$ 6127.27
(3) ☒ Attorney fees	\$ 550.00
(4) ☒ Costs	\$ 450.00
(5) ☐ Other (specify):	\$
(6) TOTAL JUDGMENT	\$ 10,367.27

- c.
- ☒
- The rental agreement is canceled.
- ☒
- The lease is forfeited.

7. ☐ Conditional judgment. Plaintiff has breached the agreement to provide habitable premises to defendant as stated in Judgment—Unlawful Detainer Habitable Premises Attachment (form UD-110H), which is attached.8. ☐ Judgment for partial eviction. A partial eviction is issued as stated in Judgment—Unlawful Detainer Partial Eviction Attachment (form UD-110P), which is attached.9. ☐ Other (specify):☐ Continued on Attachment 9 (form MC-025).

Date: June 28, 2024



Johanna Thai Van Dat
JUDICIAL OFFICER

Date: Clerk, by COMMISSIONER JOHANNA THAI VAN DAT Deputy

(SEAL)

CLERK'S CERTIFICATE (Optional)

I certify that this is a true copy of the original judgment on file in the court.

Date:

Clerk, by _____, Deputy